IN THE COURT OF APPEALS
EIGHTH DISTRICT COURT OF APPEALS
CUYAHOGA COUNTY

No. CA-25-114748

STATE OF OHIO,
Plaintiff–Appellant,

v.

QEYEON TOLBERT,
Defendant–Appellee.

On appeal from the Cuyahoga County Court of Common Pleas
Case No. CR-24-689572-A

BRIEF OF AMICI CURIAE

in Support of Defendant–Appellee

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INTEREST OF AMICI CURIAE

The American Civil Liberties Union ("ACLU") is a nationwide, nonprofit, nonpartisan organization dedicated to the principles embodied in the United States Constitution and our nation's civil rights laws. The American Civil Liberties Union of Ohio is a state affiliate of the ACLU. The ACLU has appeared before courts throughout the country in cases involving the dangers posed by unfettered police use of emerging technologies, including face recognition technology ("FRT"). Attorneys associated with the ACLU represented Robert Williams in *Williams v. City of Detroit*, No. 2:21-cv-10827-LJM-DRG (E.D. Mich.), alleging that the misuse of face recognition technology by the Detroit Police Department led to Mr. Williams's wrongful arrest, and have filed amicus briefs in other cases involving violation of constitutional rights in connection with police reliance on FRT. *See Woodruff v. Oliver*, No. 5:23-cv-11886 (E.D. Mich) (wrongful arrest); *Oliver v. Bussa*, No. 2:20-cv-12711 (E.D. Mich.) (same); *Parks v. McCormac*, No. 2:21-cv-04021 (D.N.J.) (same); *State v. Arteaga*, 476 N.J.Super. 36, 58 (App. Div. 2023) (*Brady* disclosure of details of FRT use).

The National Association of Criminal Defense Lawyers (NACDL) is a nonprofit voluntary professional bar association that works on behalf of criminal defense attorneys to ensure justice and due process for those accused of crime or misconduct. NACDL was founded in 1958. It has a nationwide membership of many thousands of direct members, and up to 40,000 with affiliates. NACDL's members include private criminal defense lawyers, public defenders, military defense counsel, law professors, and judges.

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Supreme Court and other federal and state courts, seeking to provide amicus assistance in cases that present issues of broad importance to criminal defendants, criminal defense lawyers, and the criminal justice system as a whole. NACDL has a particular interest in cases that involve surveillance technologies and programs that pose new challenges to personal privacy. The NACDL Fourth Amendment Center offers training and direct assistance to defense lawyers handling such cases in order to help safeguard privacy rights in the digital age. NACDL has also filed numerous amicus briefs in the Supreme Court on issues involving digital privacy rights, including: *Carpenter v. United States*, 585 U.S. 296 (2018); *Riley v. California*, 573 U.S. 373 (2014); *United States v. Jones*, 565 U.S. 400 (2012).

The Court has granted leave for the filing of amici's brief. *See* Journal Entry (Mar. 10, 2025).

INTRODUCTION AND SUMMARY OF ARGUMENT

The detective in this case applied for a search warrant in reliance on a purported identification of Defendant from a face recognition technology ("FRT") search. The detective had been warned that the FRT search result was only an investigative lead. But far from disclosing the role of FRT and its lack of reliability for providing an identification, the detective scrubbed his affidavit of any mention of the technology. Instead, he misleadingly vouched only that police "received an identification" of Defendant from the "Fusion center." Had the judge known that the basis for the purported identification was an unreliable FRT search that supplied "multiple photos of multiple people," Tr. at 69, it would have been clear that the warrant lacked probable cause.

Amici write to aid the Court in rendering a decision based on an accurate understanding of face recognition technology and why the investigating officer's lack of candor in the warrant

application requires suppression. This brief makes two main points. First, FRT results are fundamentally unreliable because of well-known technical limitations, racially disparate false-match rates, and human operator errors. And second, the detective's concealment of the use of FRT and representation that there had been an "identification" were materially false and misleading and thus should require suppression because the remaining facts in the affidavit cannot establish probable cause.

The importance of this issue reaches far beyond this case. Here, although police concealed their use of FRT from the judge, the prosecutor eventually disclosed it to the defendant, allowing the court below to hear the suppression motion. But police and prosecutors across the country systematically fail to disclose their use of face recognition technology to criminal defendants, meaning that people searched or arrested due to police reliance on FRT results—which are often erroneous[1]—may never know how they came to law enforcement's notice, and therefore may not be in a position to mount a legal challenge.[2] This Court can and should provide guidance to ensure that police abide by their duty of candor to courts when submitting warrant applications in such cases.

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[1] Police reliance on erroneous FRT results has been responsible for at least seven known wrongful arrests. *See* Douglas MacMillan, David Ovalle & Aaron Schaffer, Arrested by AI: Police Ignore Standards After Facial Recognition Matches, Wash. Post (Jan. 13, 2025), https://www.washingtonpost.com/business/interactive/2025/police-artificialintelligence-facial-recognition/.

[2] Douglas MacMillan et al., Police Seldom Disclose Use of Facial Recognition Despite False Arrests, Wash. Post (Oct 6, 2024), https://www.washingtonpost.com/business/2024/10/06/police-facial-recognitionsecret-false-arrest/ ("Police departments in 15 states provided The Post with rarely seen records documenting their use of facial recognition in more than 1,000 criminal investigations over the past four years. According to the arrest reports in those cases and interviews with people who were arrested, authorities routinely failed to inform defendants about their use of the software …… ").

ARGUMENT

I. Face recognition technology is inherently unreliable and cannot be relied on as a positive identification of a suspect.

As the trial court put it, the purported identification of the suspect based on face recognition technology search results in this case was "admittedly unreliable." Tr. at 92. The disclaimer appearing prominently at the bottom of each page of the Clearview AI FRT results provided to the investigating officer warned that "[f]acial recognition search results are to be treated as investigative leads" only and must be "independently verified" through "thorough investigation[]." Def's Ex. B. As Clearview further warns on its public website, its FRT system is "neither designed, nor intended . . . to be used as a sole source system for conclusively establishing or determining an individual's identity." Def's Ex. C.

That is because "real world conditions" can "reduce the accuracy of Clearview search results," and in all conditions the system is designed only to be "indicative and should not be considered definitive." *Id.* The Ohio Attorney General's Office agrees, stating publicly that Clearview searches produce "mixed results," and that those "results are merely an investigative lead that must then be followed up on by the investigator."[3]

There is good reason for these warnings: Face recognition algorithms are unreliable and indeed are not even designed to generate matches. Instead, they produce possible leads, which are often incorrect, especially in "real world conditions" where low photo quality and other variables are at play. An accurate understanding of why FRT systems are unreliable is instructive

[3] Jeremy Pelzer, Ohio Continues Facial-Recognition Searches Using Controversial Photo-Collection Firm Clearview AI, cleveland.com (Feb. 21, 2024), https://www.cleveland.com/news/2024/02/ohio-continues-facial-recognitionsearches-using-controversial-photo-collection-firm-clearview-ai.html .

in explaining why police lacked probable cause for the search of Defendant–Appellee's home in this case.

When police personnel run an FRT search, the algorithm extracts a "faceprint" or "template"[4] from the image of an unknown suspect (the "probe image" or "search image") and compares it to a database of faceprints taken from images of known individuals (for example, arrest photos, drivers' license photos or, in this case, photos scraped from the internet). The system generates similarity scores for each comparison and then outputs a "candidate list" of possible matches, generally organized in order of similarity score.

Although higher scores indicate the algorithm's calculation that the candidate appears more similar to the probe image than candidates with lower scores further down the list, a true match may appear anywhere in the candidate list, if it appears at all. Accordingly, face recognition algorithms used by police are not designed to (and do not) return a single definitive match. Rather, they are probabilistic systems that return a number of potential candidates based on an "algorithmic best guess."[5] As one court put it, "[i]nstead of being designed to produce accurate results, [the FRT algorithm] is designed to produce possibilities." *State v. Archambault*, No. 62-CR-20-5866, slip op. at 14 (Minn. 2d Dist. Ct. Sept. 13, 2024), attached as Ex. A.

FRT searches usually return multiple results. In this case, the search returned at least eight possible-match candidate photos. Def's Ex. B; *see also* Tr. at 69 ("multiple photos of multiple people"). The number can often be higher, depending on the algorithm used and its

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[4] A faceprint is a "map written in code that measures the distance between features, lines, and facial elements." *State v. Arteaga*, 476 N.J.Super. 36, 58 (App. Div. 2023) quoting Andrew Guthrie Ferguson, Facial Recognition and the Fourth Amendment, 105 Minn. L. Rev. 1105, 1111 (2021)).

[5] Eyal Press, Does A.I. Lead Police to Ignore Contradictory Evidence, The New Yorker (Nov. 20, 2023), https://www.newyorker.com/magazine/2023/11/20/does-a-i-leadpolice-to-ignore-contradictory-evidence/.

settings. As a Detroit Police Department ("DPD") employee testified in another case, for example, FRT searches run by the DPD can return "anywhere up to 10 to 100 or 500" potential matches. Dep. of Joseph Dablitz 18:17–18, *Oliver v. Bussa*, No. 2:20-cv-12711 (E.D. Mich.), ECF No. 51-3. Naturally, only one of the many candidates can be an accurate identity match. The rest will be innocent "false positives."

Furthermore, a true match to the suspect photo often will not appear in the results at all, either because the quality of the probe image is low, or because the database of images being searched does not include the true match, or for other reasons. *See* Def's Ex. C ("The quality of a submitted probe image, the lack of online images of a depicted individual in Clearview's Database, and other factors can impact and potentially reduce the accuracy of the Clearview search results.").[6]

Moreover, because many people share similar-looking facial characteristics, "[a]s more individuals are enrolled into a database, the possibility of a mismatch increases."[7] Clearview AI searches against a database comprised of "50+ billion facial images" scraped from the internet—an average of six photos for every person on earth.[8] A database in the billions means there is a high chance that any search will produce false positives. These features of FRT systems mean that "[a]t best, any one of th[e] results is potentially a false positive. At worst, all results are undeniably false positives." *Archambault*, slip op. at 18. As the former Detroit Police Chief put

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[6] See Patrick Grother et al., Face Recognition Vendor Test (FRVT) Part 3: Demographic Effects 5, Nat'l Inst. of Standards & Tech. (2019), https://perma.cc/7L99-A2QJ.

[7] Nat'l Acads. of Scis., Eng'g, & Med., Facial Recognition Technology: Current Capabilities, Future Prospects, and Governance 53 (2024) [hereinafter "National Academies Report"], https://nap.nationalacademies.org/catalog/27397/facialrecognition-technology-current-capabilities-future-prospects-and-governance.

[8] Clearview AI, Company Overview, https://www.clearview.ai/overview.

it, "[i]f [police] were just to use the technology by itself, to identify someone, I would say 96 percent of the time it would misidentify."[9]

Although FRT algorithms generate false positives even in controlled test conditions, they are especially prone to error when probe image quality is low (as is often the case in real-world conditions), or when there are differences between the probe image and the database images it is being compared against. As the Ohio Attorney General Facial Recognition Task Force explained in a 2020 report, "the performance of a facial recognition system depends on the quality of the image. Image quality is dependent on several factors including background, lighting, angle, facial expression and pose."[10] Other sources agree that lighting, shadow, angle, facial expression, and partial occlusion of the face all affect accuracy.[11] The resolution of an image (i.e., its blurriness or pixel density) can also have a huge effect on the ability of a FRT algorithm to produce an accurate match.[12] Each of these issues is well known to affect accuracy of a search.[13] And "[w]hen a face image simultaneously contains multiple confounding factors," the accuracy

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[9] Jason Koebler, Detroit Police Chief: Facial Recognition Software Misidentifies 96% of the Time, Vice News (June 29, 2020), https://perma.cc/5YVX-PTET.

[10] Ohio Atty Gen. Facial Recognition Task Force, Report & Recommendations 10 (Jan. 26, 2020), https://perma.cc/H4NF-ANNU .

[11] See, e.g., Patrick Grother et al., Face Recognition Vendor Test (FRVT) Part 2: Identification 9–10, Nat'l Inst. Standards & Tech. (2019), https://perma.cc/BR6Y6X6D; U.S. Dep't of Homeland Sec., DHS/ICE/PIA-054, Privacy Impact Assessment for the ICE Use of Facial Recognition Services 26 (2020), https://perma.cc/2TMVJMGH.

[12] See, e.g., Aman Bhatta et al., Impact of Blur and Resolution on Demographic Disparities in 1-to-Many Facial Identification, Proc. of the IEEE/CVF Winter Conf. on Applications of Comput. Vision (WACV) Workshops 412–20 (2024), https://perma.cc/MCQ3-QV5V.

[13] See, e.g., National Academies Report, supra note 6, at 43 ("Typical problems include blur owing to motion; the subject not facing the camera; part of the face not visible owing to the subject wearing a cap, scarf, sunglasses, or the like; or the subject presenting a non-neutral expression."); id. at 46 (discussing effects of low "face quality" and "face aging").

of the FRT search can be even further degraded.[14]

In this case, the probe image appears to have at least several features that render it likely to produce an inaccurate search result.[15] The probe image is a still from a store's surveillance camera video, in which the suspect is far away from the camera (and therefore the face is relatively small) and appears to be looking away at an angle. Images captured from business security cameras typically have relatively low image resolution, which impedes the accuracy of results, especially when combined with small image size, off-center angle, and poor lighting conditions.

Even where probe image quality is ideal, face recognition systems exhibit race, gender, and age bias, with higher rates of false matches when used on people of color, women, and young adults than on white people, men, and older people.[16] According to the National Institute of Standards and Technology, "even the best algorithms can be wrong more than 20 percent of the time" in test conditions,[17] and "Asian and African American people were up to 100 times more likely to be misidentified than white men, depending on the particular algorithm and type of search."[18] These disparities are a result of FRT algorithms being "trained mostly on White

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[14] Id. at 47.

[15] The version of the FRT images in the record is an extremely low-quality photocopy, which makes assessing the quality of the original images difficult. See Def's Ex. B.

[16] See, e.g., National Academies Report, supra note 6, at 55–57; Grother, supra note 8, at 7–8; K.S. Krishnapriya et al., Issues Related to Face Recognition Accuracy Varying Based on Race and Skin Tone, 1 IEEE Transactions on Tech. & Soc'y 8, 8–20 (2020), https://ieeexplore.ieee.org/document/9001031.

[17] Khari Johnson, The Hidden Role of Facial Recognition Tech in Many Arrests, Wired (Mar. 7, 2022), https://perma.cc/ECB6-LM22.

[18] Drew Harwell, Federal Study Confirms Racial Bias of Many Facial-Recognition Systems, Casts Doubt on Their Expanding Use, Wash. Post (Dec. 19, 2019), https://www.washingtonpost.com/technology/2019/12/19/federal-study-confirmsracial-bias-many-facial-recognition-systems-casts-doubt-their-expanding-use/.

faces," on lighting and color contrast issues with digital photography that result in images of darker skinned people being underexposed, and other factors.[19] In nearly every known U.S. suit against police alleging wrongful arrest due to police reliance on an incorrect FRT result, the person falsely identified and wrongly arrested is Black.[20] Defendant–Appellee in this case is Black.

On top of these technical problems, additional risk of error is introduced by human review of the FRT search results. Research has consistently shown that it is difficult for people to accurately identify people from other racial and ethnic groups.[21] When a human analyst does an initial review of a list of FRT-generated candidates, the analyst's own cognitive biases can compound racial biases in the FRT-generated candidate list.

Even further, people reflexively over-rely on computer outputs because of "automation bias," "a heuristic replacement for vigilant information seeking and processing" that can "lead to decisions that are not based on a thorough analysis of all available information but that are strongly biased by the automatically generated advice."[22] Automation bias lulls human users of automated technologies, such as FRT, into an over-reliance on seemingly foolproof computers, leading the analysts to uncritically accept the computer's returns.[23] Automation bias means analysts will be less critical and discerning when selecting a possible match, including by

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[19] U.S. Comm'n on Civil Rights, The Civil Rights Implications of the Federal Use of Facial Recognition Technology 24–29 (2024), https://perma.cc/D4VS-5866.

[20] See MacMillan et al., supra note 1.

[21] See The Handbook of Eyewitness Psychology, Volume 1: Memory for Events 257–81 (Michael P. Toglia et al. eds., 2007) (detailing dozens of studies); Kate Crookes & Gillian Rhodes, Poor Recognition of Other-Race Faces Cannot Always Be Explained by a Lack of Effort, 25 Visual Cognition 430 (2017).

[22] Raja Parasuraman & Dietrich Manzey, Complacency and Bias in Human Use of Automation: An Attentional Integration, 52 Hum. Factors 381, 391 (2010).

[23] *Id.* at 391–97.

deferring to the ranking of similarity scores generated by the algorithm in place of the analyst's own judgment. Human analysts may also assume there is an accurate match in a computer's returns even when there is not.

For these and additional reasons, research shows that human operators make errors on average 50 percent of the time "when deciding which faces in candidate lists match the search image. This is consistent with research on eye-witness identification—which is known to be unreliable, with well-meaning witnesses often mistakenly identifying innocent suspects."[24]

Because of these and other sources of unreliability and error in the FRT search process, it is commonly agreed that the results of a face recognition search do not constitute a positive identification of a suspect, and that additional reliable investigation is needed to develop probable cause.[25] But far from detailing a reliable confirmatory investigation, the warrant affidavit in this case provided no independent confirmatory evidence for probable cause. As explained below, had police revealed accurate information about the FRT search to the judge when applying for the search warrant, the judge would have understood probable cause to be lacking, and could not have approved the warrant.

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[24] David White et al., Human Oversight of Facial Recognition Technology in Forensic Applications ¶ 5 (U.K. Parliament 2021), https://committees.parliament.uk/writtenevidence/38555/html/. *Accord* David White et al., Error Rates in Users of Automatic Face Recognition Software, 10 PLoS ONE e0139827 1, 1 (2015) (the selection process "potentially reduc[es] benchmark estimates [of FRT accuracy] by 50% in operational settings").

[25] Law enforcement policies on FRT use have long specified that FRT results do not constitute probable cause. *See, e.g.*, Lucas Daprile, Northeast Ohio Police Have Access to AI-Powered Facial Recognition. Here's One of the Area's First Policies in Using it, cleveland.com (Jan. 29, 2025), https://www.cleveland.com/news/2025/01/northeast-ohio-police-have-access-to-ai-powered-facial-recognition-heres-one-of-the-areas-first-policies-in-using-it.html (Northeast Ohio Regional Fusion Center's FRT policy "says its facial recognition reports are meant only to generate leads and cannot be used as probable cause"); Bureau of Just. Assistance, U.S. Dep't of Just., Face Recognition Policy Development Template 22 (2017), https://perma.cc/CWM7-2E88 (similar).

II. Suppression was proper because the issuance of a search warrant without probable cause was attributable to the detective's intentionally or reckless false statements in the warrant application.

"[A] warrant affidavit must set forth particular facts and circumstances underlying the existence of probable cause, so as to allow the magistrate to make an independent evaluation of the matter." *Franks v. Delaware*, 438 U.S. 154, 165 (1978). A magistrate cannot carry out their independent evaluation, however, when the affiant makes a "deliberately or reckless false statement." *Id.* In that circumstance, the magistrate "cannot be viewed as neutral and detached," because their evaluation is reliant on the officer's falsehoods rather than on an accurate recital of the facts. *State v. Castagnola*, 2015-Ohio-1565, ¶ 41.

"To successfully attack the veracity of a facially sufficient search warrant affidavit, a defendant must show by a preponderance of the evidence that the affiant made a false statement, either intentionally, or with reckless disregard for the truth." *State v. McKnight*, 2005-Ohio-6046, ¶ 31 (citation & quotation marks omitted). "'Reckless disregard' means that the affiant had serious doubts about the truth of an allegation." *Id.* Both misstatements and omissions may constitute false statements; "Omissions count as a false statement if designed to mislead, or made in reckless disregard of whether they would mislead, the magistrate." *Id.* (citation & quotation marks omitted).

Once a defendant demonstrates "by a preponderance of the evidence that the affidavit contains deliberately or recklessly false statements," the warrant must be suppressed if "the affidavit, without the false statements . . . [no longer] provides the requisite probable cause to sustain the warrant." *State v. Weimer*, 2009-Ohio-4983, ¶ 32 (8th Dist.) (quoting *United States v. Charles*, 138 F.3d 257, 263 (6th Cir. 1998)); *see also Franks*, 438 U.S. at 156.

The relevant false statement in this case is in Paragraph 20 of the Affidavit:

> Affiant avers that utilizing the Fusion center they received an identification of the, as of yet, unidentified male suspect, based on the recovered surveillance video, and it was learned this male was currently paroled to the address 403 E 52nd Street, Apartment #1.

Aff. ¶ 20.

The claim that the officer "received an identification of the . . . suspect" contains both material omissions and an affirmative false representation.

The affidavit omits at least the following facts, which were known to Detective Legg, and the omission of which misled the judge by leaving the impression that the Fusion Center somehow made a reliable, definitive identification:

- The purported "identification" was derived from a face recognition technology search. *See* Def's Ex. B (Clearview AI FRT results); Tr. at 15–16 (Det. Legg acknowledging receipt of the FRT search results);
- The FRT search returned multiple photos of multiple people as investigative leads. *See* Def's Ex. B (Clearview AI FRT results showing at least eight possible-match candidate photos); Tr. at 60 (Det. Legg acknowledging that he "received multiple images" from the FRT search);
- FRT results are to be considered "investigative leads" only, and must be followed by "thorough investigations" to "independently verify" that an individual flagged by FRT is

in fact a correct match, *See* Def's Ex. B (disclaimer on Clearview AI FRT search results); Tr. at 17 (Det. Legg acknowledging receipt of disclaimer).[26]

Moreover, the claim that Detective Legg "received an identification" (emphasis added) is false, because FRT cannot provide positive identifications. *See supra* Part I. Instead, as the Clearview AI search results explained, the technology can only provide "investigative leads." *See* Def's Ex. B. Similarly, the email from the Northeast Ohio Regional Fusion Center that was forwarded to Detective Legg (but not described in the warrant affidavit) explained that the FRT search process produced only a "likely match for Qeyeon Tolbert" based on "similar facial features between the individual in the photo you provided and the booking photo." Tr. at 15 (emphases added). These descriptions reflect a tentative lead, not a positive identification. This is material to the probable cause showing because, "[w]hile an unequivocal identification is generally sufficient to establish probable cause, an identification that is tentative or uncertain may, on its own, be insufficient." *Williams v. City of New York*, 2012 WL 511533, at *3–4 (E.D.N.Y. Feb. 15, 2012) (citing cases).

The detective's falsehoods here are analogous to an officer falsely averring that a witness has positively identified a suspect, where actually the witness made only a tentative or uncertain identification. In *Pinkney v. Meadville, Pa.*, for example, the officer stated in the warrant affidavit that a witnesses "recognized" the suspect when presented with his photo. 648 F. Supp.

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[26] Although the State now asserts that the detective conducted follow-up investigation to verify the FRT result, Appellant's Br. 13–14, the details of any such investigation were omitted from the affidavit, and so could not supply probable cause for issuance of the warrant. Indeed, in support of its argument in this Court, the State cites only the post-hoc description of the investigation proffered by the detective at the suppression hearing, not the text of the warrant affidavit submitted to the warrant-issuing judge. *See id.* at 13. Without presenting details of any follow-up investigation to the issuing judge, the detective deprived the judge of the critical opportunity to evaluate whether that investigation provided independent verification, or instead was tainted by possible errors or unreliability in the FRT search process.

3d 615, 631 (W.D. Pa. 2023), *aff'd*, 95 F.4th 743 (3d Cir. 2024). In fact, the witness had said only that the suspect "look[ed] an awful lot like who [he] saw throw the punch at the bar." *Id.* at 635 (emphasis in original; first alteration added). The court held that because the witness's "statement was tentative rather than positive or certain," the representation in the affidavit of the witness's "identification of [the suspect] as positive and definitive" was misleading. *Id.* at 635, 642. Likewise here.

In addition to being factually false, the representation that the Fusion Center provided an "identification" also usurped the magistrate's role by presenting the detective's inference (that Defendant–Appellee was a match to the suspect) as fact. The Fusion Center did not purport to provide an "identification" when it passed along the FRT search results. Rather, it provided an "investigative lead." Detective Legg inferred that the FRT result plus other information meant that Defendant–Appellee was a match to the suspect. But rather than explain the basis of that inference, he passed it off as fact. "[T]he detective, by not disclosing that he had drawn an inference but instead presenting the inference as an empirical fact, usurped the inference-drawing function of the magistrate in determining probable cause." *Castagnola*, 2015-Ohio-1565, ¶ 42.

Faced with this scenario, the Ohio Supreme Court has explained that courts must "[d]etermine whether the hidden inference was so significant as to cross the line between permissible interpretation and usurpation." *Id.* ¶ 49. "A hidden inference should be deemed significant if it can be fairly concluded that it had a substantial bearing on the magistrate's determination of probable cause in each of two respects:" its "[r]elevance . . . to the magistrate's inquiry," and its "[c]omplexity," meaning that "[t]he more complex and attenuated the logical process by which a relevant conclusion is reached, the more important it is that the magistrate receive an opportunity to test the inference for validity." *Id.* ¶ 49–50. If a hidden inference is

deemed "significant," courts must determine whether the affiant "acted intentionally or with conscious indifference, [in which case] the warrant should be invalidated and the evidence suppressed." *Id.* ¶ 50.

Here, the "identification" inference was highly relevant because it was "required to provide the nexus," *id.* ¶ 58, between the alleged crime and the place to be searched, Defendant–Appellee's home. *See infra*. Moreover, the inference was complex, in that it required weighing the reliability of the FRT search results, the Fusion Center's interpretation of those results, and other purportedly confirmatory information. "This determination is so profoundly significant that the issuing magistrate should have been given the opportunity to test the validity of the undisclosed inference." *Id.*

As explained above, *supra* Part I, FRT systems are not designed to provide "identifications." Detective Legg knew as much, since he received an express disclaimer to that effect. Def's Ex. B. His false statements and misrepresentation were therefore at least reckless. He knew that FRT was the source of the purported identification, and the FRT results in his possession expressly warned that they were only "investigative leads." *Id.* And yet he concealed the source of the purported "identification" and vouched a level of certainty that the FRT search process could not sustain.

Once Paragraph 20 is stripped away, the affidavit lacks probable cause.[27] Contrary to the State's claim, Appellant's Br. 17, the other information in the warrant affidavit does not establish

[27] Under *Castagnola*, if a significant inference was represented as fact "intentionally" or with "conscious indifference," the warrant must be suppressed without assessing whether there would have been probable cause in the absence of the misrepresentation. *Castagnola* at ¶¶ 50, 60. If "the affiant negligently usurped the magistrate's inference-drawing authority," the court must "excise the inference, insert the omitted underlying facts, and reassess the affidavit for probable cause." *Id.* ¶ 51.

probable cause to search Defendant's apartment. At most, the remaining paragraphs of the affidavit show only that the unidentified suspect came and went from 403 E 152nd Street six days after the incident. Aff. ¶¶ 18, 21. But that building is a "three story, multiple unit residential dwelling." *Id.* at 1. Identifying a connection with a multi-unit apartment building in general does not establish probable cause to search a specific apartment within—here, Apartment 1. *State v. Smith*, 2002-Ohio-1069, at *4 (8th Dist.) ("search warrants generally are void if they describe a multiunit building when probable cause to search attaches to less than all units"). The misleading assertion of an "identification" by the Fusion Center was the only basis in the affidavit for a nexus between the suspect and Apartment 1. Aff. ¶ 21.[28] Consequently, the trial court's suppression order was proper.

CONCLUSION

For the forgoing reasons, amici urge the Court to affirm the suppression order.

[28] The Ohio Attorney General argues that the detective's query of the Ohio Law Enforcement Gateway (OHLEG) revealing that Mr. Tolbert "was 'paroled to the address' in question" provided independent grounds for issuing the warrant. Ohio Atty Gen. Br. at 18 (quoting Aff. ¶ 20). But that parole status assertion relies on the predicate "identification" of the suspect; when the misleading assertion of an "identification" by the Fusion Center is removed, there is no nexus to the suspect's identity and no basis for asserting that "this male['s]" parole status and address was reliably known. Aff. ¶ 20.

Dated: April 4, 2025

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